



CHAPTER cix.

An Act to enable the urban district council of Aberdare A.D. 1911.
to construct tramways and run trolley cars by railless
traction to make street improvements and to confer
other powers upon the Council. [18th August 1911.]

WHEREAS the district of Aberdare in the county of Glamorgan is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the Aberdare Urban District Council (in this Act called "the Council"):

And whereas it is expedient and would be for the public convenience that the Council should be authorised to make and maintain the tramways and works by this Act authorised and to acquire lands for the purposes thereof:

And whereas it is expedient to make further provision for the construction and working of the tramways by this Act authorised and to confer upon the Council or their lessees the powers in regard to such tramways contained in this Act:

And whereas it is expedient that the Council should be authorised to provide and run omnibuses or cars moved by electrical power supplied by means of overhead conductors or trolley wires along the routes in the district in this Act described:

And whereas the Council have been authorised by the Aberdare Urban District Council Act 1905 to widen and improve the streets along which the tramways authorised by this Act will pass:

And whereas it is expedient that the Council should be empowered to make and execute the street improvements and bridge works in this Act mentioned and to acquire lands for recreation grounds and other purposes:

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And whereas it is expedient that the Council be empowered to enter into and carry into effect agreements with other local authorities companies or persons as herein-after provided :

And whereas it is expedient that the Council should be empowered to borrow money for the purposes mentioned in this Act :

And whereas by the said Act of 1905 the Council were empowered to borrow a sum of nine thousand eight hundred pounds for the purpose of erecting a refuse destructor and such amount was not sufficient for the purpose and it is expedient that the Council should be enabled to borrow a further sum of three thousand pounds for such purpose :

And whereas it is expedient that the further powers in this Act contained should be conferred upon the Council :

And whereas estimates have been prepared by the Council for the purposes herein-after mentioned and such estimates are as follows:—

	£
For and in connexion with the construction of the tramways by this Act authorised and -	46,996
The installation of railless traction and the necessary apparatus and plant - - -	
For the purchase of land for and in connexion with the construction of the following works by this Act authorised:—	
(a) Street improvements - - - -	4,000
(b) Bridge works - - - -	4,342
(c) Public libraries - - - -	12,650
(d) Recreation grounds - - - -	4,700
(e) Refuse destructor - - - -	3,000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas an absolute majority of the whole number of the Council at a meeting held on the twenty-eighth day of October one thousand nine hundred and ten after ten clear days' notice by public advertisement of the meeting and of the purposes thereof in the Western Mail a local newspaper published and circulating in the district such notice being in addition to the ordinary notice required for summoning the meeting resolved that the expenses

in relation to the promotion of the Bill for this Act should be charged on the district fund and general district rate or be paid out of moneys to be borrowed under this Act: A.D. 1911.

And whereas that resolution was published twice in the *Aberdare Leader* being a local newspaper published and circulating in the district and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill as introduced into Parliament for this Act was confirmed by an absolute majority of the whole number of the Council at a further special meeting held in pursuance of a similar notice on the ninth day of January one thousand nine hundred and eleven being not less than fourteen days after the deposit of the Bill for this Act in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and the lands in or through which the same are intended to be made and plans of the lands which are authorised to be acquired under the powers of this Act and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands have been duly deposited with the clerk of the peace for the county of Glamorgan and those plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

And whereas plans and sections showing the lines and levels of the New Bridge Work No. 2A and also a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required to be taken or used for the purposes of the said New Bridge Work were deposited with the said clerk of the peace and are in this Act respectively referred to as the additional plans and sections and the additional book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

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A.D. 1911 — with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Aberdare Urban District Council Act 1911.

Incorporation of Acts. 2. The following Acts and parts of Acts so far as the same are applicable to the purposes of and are not varied by or inconsistent with this Act are incorporated with and form part of this Act:—

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845);

Sections 3 19 and 20 of Part I. and Parts II. and III. of the Tramways Act 1870:

Provided that the Tramways Act 1870 shall not apply to Part III. of this Act save and except such of the provisions thereof as are expressly mentioned in Part III.

Interpretation. 3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the context otherwise requires—

“The district” means the urban district of Aberdare in the county of Glamorgan;

“The Council” means the urban district council of the district;

“The county council” means the county council of Glamorgan;

“The tramways” and “the undertaking” mean respectively the tramways and the tramway undertaking by this Act authorised;

“Trolley cars” are mechanically propelled vehicles adapted for use upon roads and moved by electrical power transmitted thereto from some external source;

“Mechanical power” includes electrical and every other motive power not being steam or animal power; A.D. 1911.

“Engine” includes motor;

“Daily penalty” means a penalty for every day on which any offence is continued after conviction thereof;

“The Act of 1905” means the Aberdare Urban District Council Act 1905;

“The district fund” and “the general district rate” mean respectively the district fund and general district rate of the district;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

The several words and expressions to which meanings are assigned in enactments incorporated with this Act or in the Public Health Acts or which have therein special meanings have in this Act (except where otherwise expressly provided) the same respective meanings unless there be something in the subject or context repugnant to such construction.

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PART II.

TRAMWAYS.

Power to
make tram-
ways and
other works.

4. Subject to the provisions of this Act the Council may make form lay down work use and maintain the tramways herein-after described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates posts tubes wires overhead feeders apparatus stations depôts works and conveniences connected therewith Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways herein-before referred to and authorised by this Act will be situated wholly in the district and are—

Tramway No. 1 (1 mile 1 furlong 8·0 chains or thereabouts in length whereof 1 mile 5·5 chains will be single and 1 furlong 2·5 chains will be double line) commencing in the Cemetery Road opposite the north-west corner of the cemetery lodge passing thence along Cemetery Road Hirwain Road Gadlys Road High Street Canon Street and terminating in Victoria Square :

Tramway No. 2 (1 mile 3 furlongs 8·0 chains in length whereof 1 mile 2 furlongs 1·5 chains will be single and 1 furlong 6·5 chains will be double line) commencing in Victoria Square by a junction with Tramway No. 1 at its termination passing thence along Cardiff Street Cardiff Road Lewis Street Cardiff Road and terminating near the junction of Cardiff Road and Clarence Street :

Tramway No. 3 (1 furlong 6 chains in length and single line throughout) commencing by a junction with Tramway No. 2 at a point opposite the north-east corner of Hill Street thence passing along Cardiff Road and terminating by a junction with Tramway No. 2 at a point distant 16 yards or thereabouts eastward of the north-east corner of Mount Hill Street.

Gauge of
tramways.

5.—(1) The tramways authorised by this Act shall be constructed on a gauge of three feet six inches or such other gauge as may from time to time be determined by the Council

with the assent of the Board of Trade Provided that when the gauge is less than four feet eight and a half inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriages used on any tramways beyond the outer edge of the wheels of such carriages shall not apply to carriages used on the tramways but no engine or carriage used on the tramways shall exceed six feet six inches in width or such other width as may from time to time be prescribed by the Board of Trade. A.D. 1911.

(2) No carriages or trucks adapted for use upon railways shall be used upon the tramways.

6. The rails of the tramways shall be such as the Board of Trade may approve. Rails of tramways.

7. In addition to the requirements of section 26 of the Tramways Act 1870 the Council shall lay before the Board of Trade and the road authority a plan showing the proposed mode of constructing laying down and renewing such tramways and a statement of the materials intended to be used therein and the Council shall not commence the construction laying down and renewal of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by section 26 of the said Act. Plan of proposed mode of construction.

8. If and whenever after the passing of this Act any road authority alters the level of any road along or across which any part of the tramways is laid or authorised to be laid the Council may and shall from time to time alter or (as the case may be) lay their rails so that the uppermost surface thereof shall be on a level with the surface of the road as altered. Tramways to be kept on level of surface of road.

9.—(1) The Council may subject to the provisions of this Act with the consent of the Board of Trade make maintain alter and remove such cross-overs passing-places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the tramways or for providing access to any warehouses stables or carriage-houses or works of the Council. Power to make additional cross-overs and to double tramway lines.

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(2) Notwithstanding anything shown on the deposited plans the Council may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways and may with the like consent at any time alter the position in the road of any of the tramways or any part thereof.

(3) Provided that if in the construction of any works under this section any rail is intended to be laid nearer to the footpath than previously authorised in such a manner that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Council shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not be so laid if the owners or occupiers of one third of such houses shops or warehouses by writing under their hands addressed and delivered to the Council within three weeks after receiving the notice from the Council express their objection thereto.

Cross-over
to be con-
structed in
certain cases.

10. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Council shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Temporary
tramways
may be
made where
necessary.

11. When by reason of the execution of any work affecting the surface or soil of any road along or across the carriageway of which any of the tramways are or is laid it shall in the opinion of the Council be expedient temporarily to remove or discontinue the use of such tramway or any part thereof the Council may and shall within seven days of receiving an order in writing from the road authority under the hand of their clerk or surveyor discontinue or take up such portion of the tramways for such term as may be necessary for the execution of the said works Provided that the Council may subject to such conditions and in accordance in all respects with any regulations from

time to time made by the said authority construct in the same or any adjacent road and maintain so long as occasion may require a temporary tramway or temporary tramways in lieu of the tramway or part of a tramway so removed or discontinued. A.D. 1911.

12. The Council may at any time if they deem it expedient to facilitate the construction or working of the tramways or any of them with the consent of the road authority (if any) other than the Council set back the kerb of the footpath and widen the roadway of any street within the district in which any tramway is authorised to be laid. Provided always that the kerb shall not be so set back as to leave a footpath of less than five feet in breadth. Setting back
kerb of foot-
path.

13. In addition to the other lands which the Council are by this Act authorised to purchase and acquire they may purchase take on lease or acquire by agreement and may hold for the purposes of their tramway undertaking any lands not exceeding seven acres and they may on such lands erect or construct and hold depôts yards wharves offices buildings sidings works and other conveniences in connexion with the tramway undertaking but nothing in this Act shall exonerate the Council from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands purchased or used by them for the purposes of the tramway undertaking. Purchase of
lands by
agreement.

14. Any paving metalling or material excavated by the Council in the construction of the tramways from any road under the jurisdiction or control of any road authority may be applied by the Council so far as may be necessary in or towards the reinstatement of the road and the maintenance for six months after completion of any of the tramways within the district of such road authority and so much of the roadway on either side of such tramways as the Council are by section 28 of the Tramways Act 1870 required to maintain and the Council shall if so required deliver the surplus paving metalling or material not used or required to be retained for the purposes aforesaid to the surveyor of the road authority or to such person or persons as he may appoint to receive the same. Provided that if within seven days after the setting aside of the surplus arising from the excavation of any such paving metalling or material and notice duly given such surplus is not removed by such surveyor or by Application
of road
materials
excavated in
construction
of works.

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A.D. 1911. — some other person named by him for that purpose such surplus paving metalling or material shall absolutely vest in and belong to the Council and may be dealt with removed and disposed of by them in such manner as they may think fit Any difference between the Council and any road authority or surveyor or other person with reference to any of the matters aforesaid shall be settled by an arbitrator to be nominated by the Board of Trade on the application of either party.

Period for
completion
of tramways.

15. The tramways shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Council for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Temporary
stoppage of
streets.

16. The Council may during the execution and for the purposes of any work by this Act authorised stop up any street and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time but convenient access to the houses in such street shall be provided by the Council.

Power to
Council to
work tram-
ways.

17. The Council may place and run carriages on and may work and may demand and take tolls and charges in respect of the tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the convenient working or user of the tramways by animal or mechanical power.

Passengers'
fares.

18. The Council may demand and take for every passenger travelling upon the tramways or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile and in computing the said fare the fraction of a mile shall be deemed a mile but in no case shall the Council be bound to charge a less sum than twopence Provided that the Council may appoint stages of not less than half a mile upon any of the tramways and may notwithstanding anything in this Act contained demand and take for every passenger travelling upon such tramways any fares rates or charges not exceeding twopence for four stages and for this purpose the fraction of a stage shall be deemed a stage.

19. The Council may run through cars along any of the routes of the tramways or any portion thereof specified by the Council and such cars shall be distinguished from other cars in such manner as may be directed by the Council and they may demand and take for every passenger by such cars a fare or charge not exceeding the maximum fare allowed by this Act for and in respect of the whole of such route or the whole of the portion thereof traversed by any such car.

A.D. 1911.
As to running through cars.

20. The Council may carry passengers' luggage and parcels and may subject to the provisions of the section of this Act the marginal note of which is "Passengers' luggage" demand and take in respect of any passengers' luggage and parcels not exceeding fifty-six pounds in weight conveyed by them on the tramways including every expense incidental to the conveyance (except a reasonable sum for loading and unloading and for delivery and collection of luggage and parcels and other things and any other service incidental to the business of a carrier where any such service is performed by the Council) any rates or charges not exceeding the following:—

Rates and charges for parcels.

For any parcel not exceeding seven pounds in weight threepence;

For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight fivepence;

For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight sevenpence;

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence:

Provided always that articles sent in large aggregate quantities although made up in separate parcels such as bags of sugar coffee meal and the like shall not be deemed small parcels but that term shall apply only to single parcels in separate packages.

21. If at any time after three years from the opening for public traffic of the tramways or any portion thereof or after three years from the date of any order made in pursuance of this section in respect of the tramways or any portion thereof it is represented in writing to the Board of Trade by twenty inhabitant ratepayers of the district or by the Council that under the circumstances then existing all or any of the rates and charges demanded and taken in respect of the traffic on the tramways or on such portion should be revised the Board of

Periodical revision of rates and charges.

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A.D. 1911. Trade may (if they think fit) direct an inquiry by a referee to be appointed by the said Board in accordance with the provisions of the Tramways Act 1870 and if the referee reports that it has been proved to his satisfaction that all or any of the rates and charges should be revised the said Board may make an order in writing altering modifying reducing or increasing all or any of the rates and charges to be demanded and taken in respect of the traffic on the tramways or on such portion of the tramways in such manner as they think fit and thenceforth such order shall be observed until the same is revoked or modified by an order of the Board of Trade made in pursuance of this section Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges authorised by this Act but nothing herein contained shall prevent the Council from revising the rates from time to time as they think fit so long as the maximum charge proscribed by this Act is not exceeded.

Mode of
payment of
tolls.

22. The rates and charges by this Act authorised to be demanded and taken by the Council in respect of the tramways shall be paid at such times and places and to such persons upon or near to the tramways and in such manner and under such regulations as the Council may from time to time by notice to be annexed to the list of tolls appoint.

Construction
of electrical
works.

23.—(1) The Council may in under or over the surface of the streets or roads (including the footways thereof) in which the tramways by this Act authorised will be situate or in which it may be necessary or desirable so to do in order to connect the tramways with any generating station construct lay down erect maintain renew and repair electric wires feeders conductors posts tubes boxes and other electrical apparatus and may make and maintain openings and ways and provide overhead feeders for the purpose of working the tramways by electrical power and may for that purpose subject to the provisions contained in Part II. of the Tramways Act 1870 and to the provisions of this Act open and break up any such street or road and any sewers drains water or gas pipes tubes wires telephonic and telegraphic apparatus therein or thereunder:

Provided as follows :—

(A) All posts and apparatus erected by the Council under the powers of this Act in any street or road shall be placed in such position as the road authority

may approve Provided that no post or other apparatus shall be erected on the carriageway except with the consent of the Board of Trade ;

A.D. 1911.

(B) The route in which any electrical apparatus is to be laid or erected for the purpose of connecting the tramways with a generating station shall be approved by the road authority within whose jurisdiction each portion of the route is situate.

(2) Nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply.

24. The Council may supply electrical energy for any of the purposes of this Act and may enter into and carry into effect agreements with any local authority company body or person authorised to produce or supply electrical energy for the supply of electrical energy to the Council by such local authority company body or person Provided that any supply of electrical energy by any such local authority company body or person to the Council shall be subject to the provisions of the respective Acts or Orders under which such local authority company body or person may be empowered to supply electrical energy.

Powers as to supply of electrical energy.

25. For the purpose*of using mechanical power the Council may acquire hold and exercise patent and other rights or licences relating to motive power or otherwise but not so as to acquire any exclusive right therein.

Power to acquire patent rights.

26. Notwithstanding anything contained in section 30 of the Tramways Act 1870 where notice of any work has been given by the Council to any company body or person and such company body or person have not within fourteen days of the receipt of such notice given notice to the Council to lower or otherwise alter the position of their mains or pipes tubes wires or apparatus such company body or person shall be deemed to have approved such work.

Protection of gas and water mains.

27. Section 30 of the Tramways Act 1870 incorporated with this Act shall be read as if the following proviso had been added thereto namely Provided always that if within seven days after any such plans sections and description have been delivered to the Aberdare and Aberaman Consumers Gas

For protection of Aberdare and Aberaman Consumers Gas Company.

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A.D. 1911: Company (herein-after called "the gas company") the gas company shall by notice in writing served upon the Council elect so to do the gas company shall themselves execute to the reasonable satisfaction of the engineer of the Council all such works as may be considered necessary or in case of difference as to the necessity as may be settled by arbitration in accordance with the provisions of the said section 30 of the Tramways Act 1870 and the reasonable cost of executing such alterations shall be repaid by the Council to the gas company In case of difference as to the amount of such costs the same shall be settled in accordance with the provisions of the Arbitration Act 1889.

For pro-
tection of
David Price
Davies.

28.—(1) The Council shall not in constructing Tramway No. 2 alter or interfere in any unreasonable manner with the existing lines or rails of the railway known as the Blaengwawr Mineral Railway or any traffic thereon belonging or reputed to belong to David Price Davies of Ynyslwyd House Aberdare.

(2) If by reason of the construction of Tramway No. 2 any alteration is rendered necessary in the level of the said railway the cost and expense of making such alteration shall be borne and paid by the Council.

(3) In the event of its being necessary for the Council to interfere with the said railway the Council shall at their own expense construct all such works as may be necessary for relaying the two lines of rails the property of and belonging to the said David Price Davies on the present standard gauge of four feet and eight and one half inches with suitable crossing guard and check rails in as substantial a manner as at present on the existing gradient and on a level with the present surface of the main road to enable the engines trains trams trucks or carriages of the same David Price Davies his lessees licencees workmen agents or tenants to pass and repass safely over the same as heretofore.

(4) The Council will pave with stone sets so much of the main road on the crossing aforesaid as is shown on a plan signed by the surveyor of the said Council and the said David Price Davies and thereon coloured blue as lies between the rails of the railway and eighteen inches on either side thereof and all such works shall be constructed and maintained by the Council at their own cost and expense.

29. Where under this Act any question or dispute is to be referred to arbitration then unless other provision is made the reference shall be to an arbitrator appointed by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply thereto. A.D. 1911.
References
to arbitra-
tion.

30. Any penalty under this Act or under any byelaws or regulations made under this Act may be recovered in manner provided by the Summary Jurisdiction Acts. Recovery of
penalties.

PART III.

RAILLESS TRACTION.

31.—(1) The Council may subject to the provisions of this Act provide maintain and equip mechanically propelled vehicles (in this Act called “trolley cars”) adapted for use upon roads and moved by electrical power transmitted thereto from some external source and may use the same upon the routes hereinafter mentioned (in this Act called “the railless routes”) and may place erect and maintain in and along the streets and roads forming such routes cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working trolley cars. Power to
provide
and work
trolley cars
moved by
electricity.

(2) The routes herein-before referred to are—

Route No. 1 From the commencement of Tramway No. 1 to Queen Street Cwmdare :

Route No. 2 From Commercial Street to Abernant :

Route No. 3 From the junction of Clarence Street and Cardiff Road to the Cap Coch Inn Abercwmboi :

Route No. 4 From the junction of Clarence Street and Cardiff Road to the Shepherds Arms Inn Cwmaman.

32. The following provisions of the Tramways Act 1870 shall apply to this Part of this Act :— Application
of certain
provisions
of Tramways
Act 1870.

Section 3 (Interpretation of terms) :

Part II. (Relating to the construction of tramways (except sections 25 28 and 29)) :

Section 41 (Tramways to be removed in certain cases) :

Section 45 (Tolls &c.) :

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Section 46 (Byelaws by local authority Promoters may make certain regulations):

Section 47 (Penalties may be imposed in byelaws):

Section 49 (Penalty for obstruction of promoters in laying out tramway):

Section 50 (Penalties for wilful injury or obstruction to tramways &c.):

Section 51 (Penalty on passengers practising frauds on the promoters):

Section 52 (Transient offenders):

Section 53 (Penalty for bringing dangerous goods on to the tramway):

Section 55 (Promoters or lessees to be responsible for all damages):

Section 56 (Recovery of tolls penalties &c.):

Section 57 (Right of user only):

Section 60 (Reserving powers of street authorities to widen &c. roads):

Section 61 (Power for local or police authorities to regulate traffic in roads):

And in the application as aforesaid of such provisions the same shall be read and have effect as if the works to be constructed in the streets for running trolley cars by electrical power were tramways and as if trolley cars were carriages used on tramways.

Trolley cars not to be deemed light locomotives or motor cars.

33. Subject to the provisions of this Act trolley cars shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor shall they be deemed to be motor cars within the meaning of the Motor Car Act 1903 and neither the regulations made under that Act nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to trolley cars.

Saving of excise duties.

34. Nothing in this Act shall in any way affect the duties of excise now payable by law on licences to be taken out for trolley cars as carriages or light locomotives or hackney carriages.

Special provision with regard to Railless Route No. 3.

35.—(1) The county council shall within two months after the overhead equipment has been erected on Railless Route No. 3 put so much of the main road as will be traversed by

the Railless Route No. 3 into a suitable condition so that the trolley cars may run over the same and the Council shall pay and contribute to the county council one third of the reasonable cost of so doing and in case of any difference or dispute the same shall be settled by arbitration. A.D. 1911.

(2) The entrances to the elementary school at Cap Coch from the main road shall be closed and in lieu thereof entrances may be made to the said school from the side or back streets.

36. For the protection of the county council the following provisions shall notwithstanding anything in this Act contained apply and have effect unless otherwise agreed in writing between the county council and the Council (that is to say):— For protection of Glamorgan County Council.

(1) Before commencing to run trolley cars upon Railless Route No. 3 the Council shall give to the county council six months' notice of their intention so to do and at any time after the receipt of such notice the county council may—

(A) flatten the curve at the southern approach to the bridge at Aberaman carrying the main road over the railway of the Powell Duffryn Colliery Company between the points marked A and B and in the line and situation shown on a plan signed by George Alfred Phillips on behalf of the county council and by Owen Williams on behalf of the Council;

(B) take down the existing boundary wall abutting on the main road at Aberaman between the points marked A and B on the said plan and substitute for the same an open fence so as to afford a clear view round the curve in both directions to persons using such road;

(C) set back the boundary wall of the school-yard at Cap Coch fronting upon the road forming Railless Route No. 3 so as to provide a carriage-way opposite the said school of a width of not less than 24 feet and a second footway of a width of not less than six feet;

and upon the completion of such works the Council shall repay to the county council one half of the

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cost properly incurred by the county council in executing the said works and acquiring any lands necessary therefor :

Provided that the Council shall not require any payment for their interest in the land required for the purposes of the work mentioned in paragraph (c) of this subsection nor shall the value of any such interest be taken into account in ascertaining the cost of such work for the purposes of this subsection :

Provided also that if the county council are unable to acquire the necessary land by agreement at a reasonable cost the Council shall if so required by the county council apply for and use their best endeavours to obtain compulsory powers to acquire such land and if such powers be obtained the Council shall acquire the said land thereunder and one half of the cost properly incurred by the Council in obtaining the said powers and acquiring the said land shall be repaid to the Council by the county council :

(2) All posts cables wires and other apparatus intended to be placed by the Council in under or over the surface of the road forming Railless Route No. 3 shall be placed in such position as the county council may reasonably approve Provided that all feeder cables for the purpose of working the trolley cars shall be laid wherever possible under the footway :

(3) If any such posts or other apparatus become owing to the construction or alteration of the said road or otherwise in the opinion of the county council an obstruction the Council shall alter the position thereof in such manner as the county council may reasonably require :

(4) The provisions of the Town Police Clauses Act 1847 with respect to the side of the road at which a carriage or other vehicle is to be kept when meeting or passing any other carriage or vehicle shall apply to the driver of a trolley car :

(5) In addition to the provisions of this Act and of any Act incorporated therewith with reference to the repair of roads broken up by the Council for any

of the purposes of this Act the reinstatement of any roads vested in the county council or to the maintenance of which the county council may contribute shall include the application of a sufficient layer of surface metalling of the same specification as that employed by the road authority for the particular road and where the road is ordinarily repaired by the use of a steam or other roller shall include the use of such roller on the places where the road has been broken up until the surface thereof has been made uniform with the unbroken surface adjoining to the satisfaction of the road authority: A.D. 1911.

- (6) Any question or difference arising under this section between the Council and the county council shall be referred to arbitration in accordance with the provisions of this Act.

37.—(1) Trolley cars and the electrical equipment thereof shall be of such form construction and dimensions as the Board of Trade may approve and no trolley car shall be used by the Council which does not comply with the requirements of the Board of Trade and no such car (including the weight of its load) shall exceed a weight of five tons. Approval of trolley cars by Board of Trade.

(2) No post or other apparatus shall be erected on the carriageway except with the consent of the Board of Trade.

38.—(1) Trolley cars may be used for the carriage of passengers and of parcels not exceeding fifty-six pounds in weight but the Council shall not be bound to carry parcels other than personal luggage carried by passengers and not exceeding twenty-eight pounds in weight. Fares rates and charges.

(2) The Council may demand and take in respect of the carriage of passengers upon trolley cars fares rates and charges not exceeding the fares rates and charges which the Council could have charged if trolley cars had been carriages upon the tramways of the Council and may in like manner appoint stages in relation to such fares rates and charges.

(3) The Council may demand and take in respect of the carriage of parcels upon trolley cars rates or charges not exceeding the rates and charges which the Council could have charged for the carriage of parcels if trolley cars had been carriages upon the tramways of the Council.

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Period for
completion
of works.

39. The electrical equipment and apparatus for working trolley cars shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the Council for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed.

Board of
Trade may
authorise
new routes.

40.—(1) If at any time hereafter the Council desire to use trolley cars upon any road within the district as defined by the Tramways Act 1870 (other than the streets or roads hereinbefore specified) they may make application to the Board of Trade and the Board of Trade shall be and are hereby empowered to make a Provisional Order authorising the use of trolley cars upon any road or roads or parts thereof described in the application.

(2) No such application shall be entertained by the Board of Trade unless the Council shall—

(A) have published once in each of two successive weeks in the months of October or November notice of their intention to make such application in some newspaper or newspapers circulating in the district ;

(B) have posted for fourteen consecutive days in the months of October or November in conspicuous positions in each of the several streets or roads in which such application relates a notice of their intention to make such application and each such notice shall state the time and method for bringing before the Board of Trade any objection to the grant of such application.

(3) The Board of Trade may and they are hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Board of Trade shall consider any such application and may if they think fit direct an inquiry to be held in the district in relation thereto or may otherwise inquire as to the propriety of proceeding upon such application and they shall consider any objection to such application that may be lodged with them in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(5) In any case where it shall appear to the Board of Trade expedient and proper that the application be granted they

may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Part of this Act shall not have any operation. A.D. 1911.

(6) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

The Act of Parliament confirming a Provisional Order under this Act shall be deemed a public general Act.

(7) The making of a Provisional Order under this section shall be *prima facie* evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(8) Any expenses incurred by the Board of Trade in connexion with the preparation and making of any such Provisional Order and any expenses incurred by the Board of Trade in connexion with any inquiry under this section shall be paid by the Council.

(9) Provided that any Provisional Order obtained by the Council under the Tramways Act 1870 authorising the construction of tramways in the district may authorise the Council to use trolley cars upon all or any of the streets or roads along which such tramways are authorised to be constructed in lieu of and pending the construction thereof.

41. The undertaking, authorised by this Part of this Act shall be deemed to form part of the tramway undertaking of the Council :

Provided that in the accounts of the Council relative to their tramway undertaking the receipts and expenditure upon and in connexion with trolley cars shall (as far as may be reasonably practicable) be distinguished from the receipts and expenditure upon or in connexion with the remainder of such undertaking.

Trolley cars to be part of tramway undertaking for all purposes.

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Act, 1911.

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Conveyance
of mails.

42. The Council shall perform in respect of trolley cars all the services in regard to the conveyance of mails which are prescribed by the Conveyance of Mails Act 1893 in the case of a tramway as defined by that Act and authorised as in that Act stated.

For pro-
tection of
Great West-
ern Railway
Company.

43. For the protection of the Great Western Railway Company (herein-after called "the Great Western Company") the following provisions shall unless otherwise agreed between the Council and the Great Western Company have effect (that is to say):—

(1) The Council shall construct and maintain the Bridge Works Nos. 1 and 2A and the works in connexion therewith by this Act authorised so as not to injure the stability of and so as to leave undisturbed at all times the lines of railway structures and other works connected therewith of the Great Western Company and so as in no way to obstruct impede endanger or interfere with the free uninterrupted and safe user of the said railway or with the traffic thereon and if any such obstruction impediment damage or interference shall be caused or take place the Council shall pay full compensation to the Great Western Company in respect thereof:

(2) The Council shall construct the Bridge Works Nos. 1 and 2A where the same are intended to cross over the railway and property of the Great Western Company with superstructures consisting of wrought iron or steel girders with wrought iron or steel flooring each bridge having a single span of the whole width of the property of the Great Western Company at the proposed points of crossing and such bridges shall be erected in such positions as shall be reasonably approved by the engineer of the Great Western Company and shall be constructed and for ever after maintained by the Council with a clear headway throughout of not less than fifteen feet above the existing level of the upper surface of the rails upon the said railway at the said points of crossing:

(3) The Council shall construct the said bridge works where the same will be constructed upon across under or over the railways of the Great Western Company and

all works both temporary and permanent necessary and incident to the construction thereof so far as they adjoin the railways property and works of the Great Western Company in accordance with the provisions of this section and according to plans sections drawings and specifications and of such quality and strength of materials and in every other respect as shall be previously submitted to and reasonably approved in writing by the said engineer of the Great Western Company and under his superintendence Provided that if the Great Western Company do not within twenty-eight days after such submission signify their approval or disapproval of such plans sections drawings specifications and particulars they shall be deemed to have approved thereof: A.D. 1911.

- (4) The Council shall not commence the construction of the said bridge works or enter upon or interfere with any lands works or property belonging to or used by the Great Western Company until such plans sections drawings specifications and other particulars have been so submitted and approved:
- (5) If any subsidence shall occur by which the level of the said bridge works over the railway sidings and property of the Great Western Company shall be lowered so that the headway prescribed by this section be not maintained then the Council shall at their own cost whenever called upon by the Great Western Company so to do raise or lift the bridge over the railway sidings and property of the Great Western Company to the height and level above Ordnance datum at which it was originally constructed under the provisions of this Act:
- (6) The Council shall not (except with the previous consent of the Great Western Company under their common seal) purchase or acquire any lands or property of the Great Western Company but the Council may purchase and take and the Great Western Company may and shall sell and grant accordingly an easement or easements or right of using such of the lands of the Great Western Company as shall be necessary for the construction and maintenance in accordance with the provisions of this section of the Bridge Works Nos. 1 and 2A:

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(7) The Council shall bear and on demand pay to the Great Western Company the reasonable expense of the employment by the Great Western Company during the construction of the said bridge works or other works by this Act authorised across and adjoining and near to or affecting their railway and works of a sufficient number of inspectors watchmen and signalmen to be appointed by the Great Western Company for watching their railways and works and the conduct of the traffic thereon with reference to and during the execution of the intended works for preventing as far as may be all interference obstruction danger and accident from any of the operations or from the acts or defaults of the Council or their contractors or any person in the employ of the Council or of their contractors with reference thereto or otherwise and also the reasonable expense of lighting their railway and works during the execution of the said works and if by reason of the construction of the said railways and works it shall become necessary to add to alter or remove any signal cabins signal posts signal telegraph and telephone posts and wires or other works on or connected with the railways of the Great Western Company or substitute other works therefor the Great Western Company shall carry out such additions alterations removal or substitution and the reasonable expense thereof shall be repaid to them by the Council forthwith on demand and the cost of maintenance and working of any such additional or altered signal cabins signal posts signals telegraph or telephone posts and wires or other works as shall have become necessary by reason of the works of the Council shall forthwith on demand be repaid to the Great Western Company by the Council:

(8) The Council shall be responsible for and make good to the Great Western Company all losses costs damages and expenses which may be occasioned to the Great Western Company or any of their works or property or to the traffic on their railway or to any company or person using the same during the construction or by reason of the failure of any of the said bridge works or other works by this Act authorised or by

reason of any act default or omission of the Council or of any person in their employ or of their contractors for the intended works or any part thereof and the Council shall effectually indemnify and hold harmless the Great Western Company from all claims and demands upon or against them by reason of such execution or failure or of any such act or default: A.D. 1911.

- (9) The Council shall at all times maintain the said bridge works and other works by this Act authorised which cross or otherwise affect the railways of the Great Western Company in substantial repair and good order and condition to the reasonable satisfaction in all respects of the engineer of the Great Western Company and if and whenever the Council fail so to do the Great Western Company may make and do in and upon as well the lands of the Council as their own lands all such works and things as they reasonably think requisite in that behalf and the sum from time to time certified by their engineer to be the reasonable amount of such their expenditure shall be repaid to them by the Council and in default of full repayment may be recovered by the Great Western Company from the Council:
- (10) If the Great Western Company in the exercise of their powers shall at any time hereafter require either to lift widen lengthen strengthen reconstruct alter or repair their said railways under or upon which the said bridge works are laid the Council shall afford to the Great Western Company all reasonable and proper facilities for the purpose:
- (11) The Council shall from time to time pay to the Great Western Company any additional expense which the Great Western Company may reasonably incur in effecting such lifting widening lengthening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance of any railway or other work of the Great Western Company by reason of the existence of the said bridges:
- (12) On the completion and opening for traffic of the said bridge works or either of them any rights of way

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which may be claimed across the railway of the Great Western Company between the points marked E and F upon the additional deposited plans shall forthwith cease and determine:

- (13) Before commencing the construction of the said bridge works the Council shall give notice to the Great Western Company of their intention to proceed with them and if within twenty-eight days from the receipt of such notice the Great Western Company in writing desire the Council to provide a flight or flights of steps from the said bridge works or either of them to the level of the rails of the Great Western Railway the Council shall construct such flight or flights of steps as the Great Western Company may reasonably require and the Great Western Company shall forthwith after the completion of such work repay to the Council the extra cost reasonably incurred by them in providing such flight or flights of steps:
- (14) The Council shall not under the provisions of the section of this Act the marginal note of which is "Temporary stoppage of streets" stop up any street or road so as to prejudicially affect the access to any station halt or goods depôt of the Great Western Company:
- (15) Any dispute or difference which may arise between the Great Western Company and the Council with reference to the provisions of this section or in any way arising thereout or as to the approval of any plans or any works to be carried out by the Council or by the Great Western Company shall be settled by arbitration by an engineer or other fit person to be agreed upon between them or failing such agreement to be appointed by the Board of Trade on the application of either party and the provisions of the Arbitration Act 1889 shall apply to such arbitration.

PART IV.

PROVISIONS COMMON TO TRAMWAYS AND RAILLESS TRACTION.

Inspection
by Board of
Trade.

44. The tramways shall not be opened and the railless routes shall not be used for public traffic until they have been inspected and certified to be fit for such traffic by the Board of Trade.

45.—(1) The Council at all times after the opening of the tramways and the railless routes for public traffic shall and they are hereby required to run thereon a proper and sufficient service of carriages or trolley cars for artizans mechanics and daily labourers each way every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning nor earlier than two in the afternoon respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or fraction of that distance and on Saturdays the Council in lieu of running such carriages after two o'clock in the afternoon shall run the same at such hours in the afternoon as may be most convenient for the said purposes.

A.D. 1911.

Cheap fares
for labouring
classes.

(2) If complaint is made to the Board of Trade that such proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct the Council to provide such service as may appear to the Board to be reasonable.

(3) The Council shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

46. The Council shall not nor shall any person working or using the tramways or trolley cars take or demand on Sunday or any public holiday any higher fares or charges than those levied by them on ordinary working days.

Fares on
Sundays and
holidays.

47. Every passenger travelling upon the tramways or trolley cars may take with him his personal luggage not exceeding twenty-eight pounds in weight without any charge being made for the carriage thereof provided that such luggage be carried by hand and at the responsibility of the passenger and do not occupy any part of a seat nor be of a form or description to annoy or inconvenience other passengers.

Passengers'
luggage.

48. The carriages used on the tramways and the railless routes may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

Motive
power.

(1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade:

A.D. 1911.

(2) The Board of Trade shall make regulations (in this Act referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the tramways and the railless routes and for regulating the use of electrical power:

(3) The Council or if the tramways and railless routes or any or either of them be leased the person using any mechanical power on the tramways and railless routes contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof:

(4) The Board of Trade if they are of opinion—

(A) that the Council or such person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered; or

(B) that the use of mechanical power as authorised under this Act is a danger to the passengers or the public;

may by order either direct the Council or such person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Council or such person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Penalty for
not main-
taining rails
roads and
overhead
equipment.

49.—(1) The Council shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the tramways and the substructure upon which the same rest and the overhead equipment by this Act authorised and if the Council at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a daily penalty not exceeding five pounds.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of the district that the Council have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Council to such penalty or penalties in respect thereof as is or are by this section imposed. A.D. 1911.

50. The provisions of sections 26 to 33 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Council for the purposes of mechanical power were parts of the tramways. Apparatus used for mechanical power to be deemed part of tramways.

51. The Council shall not carry on the tramways or trolley cars any goods animals or other things except mails passengers and passengers' luggage and parcels not exceeding fifty-six pounds in weight carried under and subject to the foregoing provisions of this Act. Council not to carry animals and goods.

52. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages:— Special provisions as to use of electrical power.

(1) The Council shall employ either insulated returns or uninsulated metallic returns of low resistance:

(2) The Council shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to

A.D. 1911.

time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus:

- (3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return:
- (4) The Council shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Council either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking:
- (5) At the expiration of two years from the passing of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents:
- (6) If any difference arises between the Council and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of

Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be: A.D. 1911.

- (7) The expression "Council" in this section shall include lessees licencees and any person owning working or running carriages over any tramway of the Council.

53.—(A) Notwithstanding anything in this Act contained if any of the works by this Act authorised involves or is likely to involve any alteration of any telegraphic line belonging to or used by His Majesty's Postmaster-General the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any such alteration. For protec-
tion of Post-
master-
General.

(B) In the event of the tramways or the railless routes being worked by electricity the following provisions shall have effect:—

- (1) The Council shall construct their electric lines and other works of all descriptions and shall work the undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by the Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of the undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Council as to compliance with this subsection shall be referred to arbitration:
- (2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Council of their electric lines and works or by the working of the undertaking the Council shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection:
- (3) Before any electric line is laid down or any act or work for working the tramways or the railless routes by

A.D. 1911.

electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Council or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Council and their agents shall conform with such, reasonable requirements (either general or special) as may be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously affected by the said act or work. Any difference which arises between the Postmaster-General and the Council as to any requirements so made shall be referred to arbitration :

(4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works by this Act authorised is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of any such works or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated for the purposes of this Act at any works of the Council enter thereon for the purpose of inspecting the plant and the working of the same and the Council shall in the presence of such engineer-in-chief or such appointed person as aforesaid make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Council pursuant to the Board of Trade regulations :

(5) In the event of any contravention of or wilful non-compliance with this section by the Council or their agents the Council shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :

- (6) Provided that nothing in this section shall subject the Council or their agents to a fine under this section if they satisfy the court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice: A.D 1911.
- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work:
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act:
- (9) The expression "electric line" has the same meaning in this section as in the Electric Lighting Act 1882:
- (10) Any question or difference arising under this section which is directed to be referred to arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Council or their agents were a company within the meaning of that Act:
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Council by indictment action or otherwise in relation to any of the matters aforesaid:
- (12) In this section the expression "the Council" includes any person owning working or running carriages over the tramways or owning working or running the trolley cars.

A.D. 1911.

Use of tram-
way posts by
Postmaster-
General.

54.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Council in connexion with the tramways or the trolley cars and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

(A) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways or the trolley cars :

(B) The Postmaster-General shall give to the Council not less than twenty-eight days' notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided :

(c) Unless otherwise agreed between the Postmaster-General and the Council the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or the trolley cars or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Council or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section ;

- (D) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires. Any difference as to the conditions of attachment shall be determined as herein-after provided: A.D. 1911.
- (E) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road:
- (F) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair:
- (G) The Postmaster-General shall make good to the Council and shall indemnify them against any loss damage or expense which may be incurred through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Council their officers or servants:
- (H) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Council and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Council or failing agreement determined as herein-after provided:
- (I) The Council shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or the trolley cars or by any accident arising thereon or by the authorised use by the

A.D. 1911.

Council of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Council their officers or servants:

- (j) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days' notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Council the value of the same. Provided that if the Council or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Council from using their posts standards or brackets for the support of any of their electric wires and apparatus whether in connexion with their tramways or other undertakings or shall take away any existing right of the Council of permitting the use by any company or person of their posts standards or brackets in connexion with the lighting of the streets or otherwise. Provided that any difference between the Postmaster-General and such company or person in relation to the use of the posts standards or brackets by the Postmaster-General and such company or person respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section the expression "Council" includes their lessees the expression "telegraph" has the same meaning as in the Telegraph Act 1869 and other expressions have the same meaning as in the Telegraph Act 1878.

Attachment
of brackets
&c. to build-
ings.

55. The Council may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the tramways or trolley cars by mechanical power:

Provided that—

- (1) Where in the opinion of the Council any consent under this section is unreasonably refused they

may appeal to a petty sessional court who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid: A.D. 1911.

- (2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Council notice in writing requiring the attachments to be removed. Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1):

- (3) The owner may require the Council to temporarily remove the attachments where necessary during any reconstruction or repair of the building wall or bridge.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner.

56. The Council may use any of the tramways or the railless routes for the removal and disposal of dust refuse night-soil materials goods and other things for the use of the Council and may provide depôts in connexion therewith and control and manage the same. Use of tramways for removal of refuse.

57.—(1) The Council may enter into an agreement or agreements with any corporation company or person for a lease (not exceeding twenty-one years) to such corporation company or person of the tramways or the railless routes or any part or parts thereof as the case may be for such period at such rent and upon such other terms and conditions as they may think fit. Provided that in any such lease the amount to be paid Power to lease tramways and railless routes.

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Act, 1911.

A.D. 1911. to the Council by way of rent shall in no case be less than a sum sufficient to pay the interest on all moneys required to be borrowed for the purpose of the construction of the tramways or the railless routes and the electrical equipment thereof or of the part or parts so leased as aforesaid and the provision of carriages and trolley cars and also sufficient to provide the requisite appropriations instalments or sinking fund payments as provided by section 34 (Mode of payment off of money borrowed) of the Act of 1905.

(2) So soon as the Council have completed the tramways or the railless routes or part or parts thereof as the case may be so agreed to be leased as aforesaid and have demised the said tramways or the railless routes or part or parts thereof together with such equipment as may be provided as aforesaid to such corporation company or person at the rent and upon such other terms and conditions as may be agreed the powers of the Council to work the tramways or the railless routes or part or parts thereof respectively shall be suspended during the continuance of such lease.

(3) All moneys received by the Council by way of rent under this section shall be treated as tramway revenue and applied in manner provided by the section of this Act the marginal note whereof is "Application of tramway revenue."

Byelaws.

58.—(1) Subject to the provisions of this Act the Board of Trade may make byelaws with regard to any of the tramways and railless routes upon which mechanical power may be used for all or any of the following purposes (that is to say):—

For regulating the use of any bell whistle or other warning apparatus fixed to the engine or carriages;

For regulating the emission of smoke or steam from engines used on the tramways and railless routes;

For providing that engines and carriages shall be brought to a stand at the intersection of cross streets and at such places and in such cases of horses being frightened or of impending danger as the Board of Trade may deem proper for securing safety;

For regulating the entrance to exit from and accommodation in the carriages used on the tramways and railless routes and the protection of passengers from the machinery of any engine used for drawing or propelling such carriages;

For providing for the due publicity of all byelaws and Board of Trade regulations in force for the time being in relation to the tramways and railless routes by exhibition of the same in conspicuous places on the carriages and elsewhere. A.D. 1911.

(2) Any person offending against or committing a breach of any of the byelaws made by the Board of Trade under the authority of this Act shall be liable to a penalty not exceeding forty shillings.

59. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways and the railless routes shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations at which carriages are to be driven or propelled on the tramways and the railless routes under the authority of this Act but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised. Amendment of Tramways Act 1870 as to byelaws by local authority.

60. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any tramways or railless routes or portions of tramways or railless routes for the time being belonging to and worked by the Council be made by the Council alone. Regulations.

61. The Council may appoint the stations and places from which the carriages or trolley cars used on any of the tramways or railless routes respectively shall start or at which they may stop for the purpose of taking up or setting down passengers and may make regulations for fixing the time during which such carriages or trolley cars shall be allowed to remain at any such place and for enforcing order at any such place. The term "carriage" in this section shall include any engine used on the tramways. Council may appoint stopping and starting places.

62. The Council may erect and maintain shelters or waiting rooms for the accommodation of passengers and may with the consent of the road authority use for that purpose portions of the public streets or roads. Shelters or waiting rooms.

63. If any person wilfully does or causes to be done with respect to any apparatus used for or in connexion with the working of any tramway or railless route of the Council anything which Penalty for malicious damage.

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A.D. 1911. is calculated to obstruct or interfere with the working of such tramway or railless route or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any tramway or railless route of the Council shall be liable to a penalty not exceeding twenty pounds.

Orders &c. of
Board of
Trade.

64. All orders regulations and byelaws made by the Board of Trade under the authority of this Act shall be signed by a secretary or an assistant secretary of the Board.

Application
of tramway
revenue.

65. The Council shall apply all money from time to time received by them in respect of their tramway undertaking except money borrowed and money derived from the sale of surplus lands or other moneys received on capital account as follows (that is to say):—

First In maintaining the tramways and railless routes and any works or apparatus connected therewith and any tramways and railless routes leased or worked by the Council and in maintaining so much of the road on which the tramways are laid as is required to be maintained by them under section 28 of the Tramways Act 1870 :

Secondly In payment of all working and other expenses properly chargeable to revenue :

Thirdly In payment of the interest on the moneys borrowed by the Council for the purposes of their tramway undertaking :

Fourthly In providing the requisite instalments appropriations annual repayments or sinking fund in respect of moneys borrowed by the Council for the purposes of their tramway undertaking :

Fifthly In providing a reserve fund if they think fit by setting aside such money as they from time to time think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being.

by the Council upon their tramway undertaking which fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the Council from that undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of that undertaking and so that if that fund is at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens: A.D. 1911.

And the Council shall carry to the district fund any balance remaining in any year after retaining or setting aside such a sum as may in the opinion of the Council be required for carrying on their tramway undertaking and paying the current expenses connected therewith and shall also carry to the district fund the annual proceeds of the reserve fund when such fund amounts to the prescribed maximum.

66. Any deficiency in the revenue or receipts of the Council on account of their tramway undertaking shall be made good out of the district fund and the next general district rate to be made by the Council shall be increased so far as may be necessary to recoup to the district fund the amount so made good out of that fund. As to deficiency in receipts.

67. The Council shall keep the accounts in respect of their tramway undertaking separate from all their other accounts distinguishing therein capital from revenue. Separate accounts.

68. Nothing in this Act contained shall exempt the Council or the tramways or trolley cars from the provisions of any general Act relating to tramways passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Act. Provision as to general Tramway Acts.

PART V.

STREET IMPROVEMENTS AND BRIDGE WORKS.

69. The Council may subject to the provisions of this Act enter upon take and use by compulsion or agreement such of the lands shown on the deposited plans and the additional plans and described in the deposited book of reference and the Construction of works.

A.D. 1911. additional book of reference as they may require for the purposes of this Part of this Act or in connexion therewith and may make and maintain in the lines and according to the levels shown on the deposited plans and sections and the additional plans and sections the street improvements and bridge works herein-after mentioned together with all necessary works and conveniences connected therewith or incidental thereto (that is to say):—

Street Improvement No. 1 The acquisition and the setting back of the boundary walls and forecourts of Nos. 6 7 8 9 10 and 11 Mill Street situate on the north-west side of that street and also the smithy-yard and bill-posting station adjoining No. 6 and the junction of Llewelyn Street with Mill Street:

Street Improvement No. 2 The acquisition and the setting back of the boundary walls and forecourts and any buildings and bill-posting stations thereon of the premises situate on the north-east side of Hirwain Road from the junction of Frederick Street to the junction with Mill Street and being Nos. 2 5 6 7 8 9 9A 10 and 10A Hirwain Road:

Street Improvement No. 3 The setting back of the boundary wall on the south-west side of Gadlys Road from the junction of Morgan Street to the south-east corner of the Mackworth Arms Inn:

Street Improvement No. 5 The acquisition of the corner house and land being No. 25 Abernant Road at the junction of Abernant Road and Cwmbach Road and a portion of the timber yard and buildings thereon adjoining the said premises in Cwmbach Road:

Street Improvement No. 6 The acquisition of the forecourts of Nos. 13 14 and 15 Cardiff Road and the setting back of the public footpath adjoining the same:

Street Improvement No. 7 The acquisition and setting back of the pillars and walls of the disused Blaengwawr Mineral Railway and the bill-posting station thereon from the Rose and Castle Inn to No. 402 Cardiff Road:

Street Improvement No. 8 The setting back of the forecourts of Nos. 374 375 376 377 378 379 380 381 382 382A 383 384 and 385 Cardiff Road situate on the south-west side of the said road and northward of Club Street:

Street Improvement No. 9 The setting back of the foot-
path and railings including the cellar entrances on the
north side of Cardiff Road and in front of Nos. 167 168
169 and 170 in that road and the Aberaman Institute
including a cellar entrance under and adjoining the
house No. 195 Cardiff Road: A.D. 1911.

Street Improvement No. 10 The acquisition of Grove Cot-
tage and grounds at the junction of Cardiff Road and
Clarence Street:

Street Improvement No. 11 The acquisition of No. 34
Regent Street at the junction of Regent Street and
Jubilee Road on the north-west side of Jubilee Road:

Street Improvement No. 12 The acquisition of a piece of
land at the rear of Nos. 15 16 and 17 Mountain Road for
providing better access from Mountain Road Cwmaman
to Morris Street Cwmaman:

Street Improvement No. 13 The acquisition and setting
back of the boundary wall of the forecourt and garden
of the house No. 1A Windsor Terrace Abernant Road:

Bridge Work No. 1 Robertstown Bridge A new road and
bridge with approaches over the Gadlys Feeder and the
Taff Vale and Great Western Railways from Tudor
Terrace Gadlys Aberdare to Robertstown commencing at
a point immediately opposite the north-east end of Tudor
Terrace and terminating at the rear of Thomas Street at
a point 64 yards or thereabouts north-eastward of the
fence of the Great Western Railway in the centre or
thereabouts of the cross road between Thomas Street and
Bridge Street:

Bridge Work No. 2A A new road and footbridge at Cwmbach
commencing at a point in the centre of the road imme-
diately opposite the south-west corner of the Crown Bridge
over the Aberdare Canal thence passing south-eastwards
over the Colliery sidings of the Powell Duffryn Steam
Coal Company Limited the Taff Vale Mineral Railway
Company and the Great Western Railway Company
thence southwards across the meadow forming part of
the Tirfoundir Farm and over the River Cynon terminating
at a point in the centre of the public footpath 26 yards
or thereabouts westward of the Taff Vale Railway Bridge
over the River Cynon.

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Limits of
lateral and
vertical de-
viation for
street works.

70. Subject to the provisions of this Part of this Act and to section 308 of the Public Health Act 1875 the Council in the construction of the bridge works by this Act authorised may deviate laterally from the lines thereof as shown on the deposited plans to the extent of the limits of lateral deviation shown thereon and they may deviate vertically from the limits shown on the deposited sections to any extent not exceeding two feet upwards or downwards.

Removal of
railings at
St. John's
Church and
Taff Vale
Railway
Bridge.

71.—(1) Notwithstanding anything in this Act contained the Council shall not acquire any land belonging or reputed to belong to the vicar of the parish of St. John the Baptist Aberdare but the Council may remove the boundary fence directed by section 8 of the Act of 1905 to be erected and maintained by the Council between the footpath and high road including the existing posts and pillars The Council may also remove the existing fence between the footpath and the churchyard including posts pillars and gates and re-erect the same in the position shown by the red line A B on the plan dated 7th February 1911 and deposited at the Council offices and signed by the vicar and churchwardens and the surveyor of the Council The said fence shall thereafter be and remain the property of the vicar of Aberdare for the time being The land situated between the existing boundary fence and the line of the proposed fence next the churchyard containing 370 square yards or thereabouts shall remain the property of the said vicar but the same shall be dedicated to the public use in perpetuity as a highway The contents of each grave within the area of the land taken by the Council to be separately and reverently re-interred by and at the expense of the Council in the consecrated portion of the Public Cemetery Trecynon Aberdare grave for grave and all gravestones such as headstones and sidestones to accompany the remains to which they belong and be re-erected over them Broken or damaged coffins shall be enclosed in an outer coffin or shell before removal Where the identity of the bodies can be ascertained the names and particulars of each shall be engrossed on two parchment rolls one of which shall be preserved by the vicar and the other by the Aberdare Urban District Council The soil of the whole area so to be dedicated to the public use as aforesaid shall be excavated by the Council to a depth of six feet and any human remains (except as herein-before mentioned) shall reverently be collected and re-interred in one

common grave in the consecrated portion of the public cemetery at Trecynon Aberdare Any portion of the soil of the area so to be dedicated to the public use as aforesaid which may require removal shall be decently placed within the churchyard where and as directed by the vicar During the whole period of excavation and removal of bodies and human remains the area shall be surrounded by a hoarding of sufficient height to prevent unauthorised persons from entering or overlooking the same The Council shall also construct and maintain a paved footway along the side of the said road the inner edge or kerbstone of which shall be in the position shown by the red line C D on the said plan The Council shall not lay the rails of a tramway nearer to the kerbstone than is shown upon the said plan by blue lines nor shall any other works be executed upon the said area which shall in any way obstruct the entrance to the churchyard The Council shall pay on demand to the vicar for the time being as compensation for the land as and when the same shall be so dedicated to the use of the public as aforesaid and added to the roadway and footpath a sum of twenty-five pounds and such sum shall be applied by him in or towards the repairs of the structure of the church of St. John the Baptist Aberdare. A.D. 1911.

(2) The Council may remove the existing pillars and screen on the Taff Vale Railway Bridge carrying the public roadway over the Taff Vale Railway.

72. Subject to the provisions of this Act and within the limits defined on the deposited plans the Council in connexion with the street works authorised by this Act and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or contiguous to the said street works and bridge works and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said street works or of crossing under or over the same or otherwise and may alter divert or stop up any drain or sewer shown on the deposited plans the Council providing a proper substitute before interrupting the flow of sewage in any drain or sewer Provided that the provisions of section 308 (Compensation in case of damage by local authority) of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act. Power to make subsidiary works.

[Ch. cix.] *Aberdare Urban District Council* [1 & 2 GEO. 5.]
Act, 1911.

A.D. 1911.

Power to
stop up
existing
footpath.

73.—(1) Subject to the provisions of this Act the Council may discontinue and stop up so much of the footpath in the district passing over the railways sidings and works of the Great Western Railway the Taff Vale Mineral Railway and of the Powell Duffryn Steam Coal Company Limited as lies between the point of termination of the Bridge Work No. 2a authorised by this Act and the Aberdare Canal and lying between the points marked E and F upon the additional deposited plans.

(2) The Council shall not discontinue or stop up the said footpath until the Bridge Work No. 2a has been completed and opened for public use.

(3) Upon the stopping up of the footpath between the above-mentioned points all public rights of way (if any) between such points over the railways sidings works and lands of the Great Western Railway Company the Taff Vale Mineral Railway Company and of the Powell Duffryn Steam Coal Company Limited shall be extinguished.

Power to
alter steps
areas and
pipes.

74. The Council may raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains mains and the leaden or other pipes or wires which for the purpose of conveying water electricity or gas to any house or other place shall be laid into or from any main cable or pipe laid down by the Council and may remove all other obstruction so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Correction
of errors &c.
in deposited
plans and
book of
reference.

75. If any omission misstatement or erroneous description is found to have been made of any lands or of any owners lessees or occupiers of any lands described or intended to be described in the deposited plans or book of reference the Council may apply to two justices not being members of the Council for the correction thereof after giving ten days notice to the owners lessees and occupiers of the lands affected by the proposed correction and if it appears to such justices that the omission misstatement or erroneous description arose from mistake they shall certify the same accordingly stating the particulars of the omission misstatement or erroneous description and such certificate shall be deposited with the clerk of the peace for the

county of Glamorgan and a duplicate of the certificate shall also be deposited with the officer or person with whom the plans or book of reference to which it relates were deposited and such certificate and duplicate respectively shall be kept with the other documents to which it relates and subject and according to the same enactments and provisions as apply to those other documents and thereupon the deposited plans or book of reference (as the case requires) shall be deemed to be corrected according to the certificate and the Council may enter on take hold and use those lands accordingly.

A.D. 1911.

76. The powers of the Council for the compulsory purchase of lands shown upon the deposited plans shall cease after the expiration of three years from the passing of this Act.

Period for compulsory purchase of lands.

77. In settling any question of disputed purchase money or compensation under this Act the court or person settling the same shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the lands created after the first day of December one thousand nine hundred and ten if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently altered buildings.

78. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Council of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Council and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Owners may be required to sell parts only of certain lands and buildings.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of this Act or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties";

A.D. 1911.

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Council that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Council such portion only without the Council being obliged or compellable to purchase the whole the Council paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Council allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after in this section referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Council have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Council the portion which the tribunal shall have determined to be so severable without the Council being obliged or compellable to purchase the whole the Council paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be

severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner : A.D. 1911.

(6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Council may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

(7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Council in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

79. All lands which shall be laid into and appropriated for streets in pursuance of the provisions of this Part of this Act or upon which any new roads road widenings footpaths or other works shall be constructed under the powers of this Part of this Lands on which street works are constructed to be part of public streets.

A.D. 1911. Act shall after such laying into appropriation or construction for ever form part of the public streets and shall be maintained and kept in repair under the same conditions as those under which the public streets generally within the district are for the time being by law maintained and kept in repair.

For further
protection of
Great
Western
Railway
Company.

80. For the protection of the Great Western Railway Company (herein-after called "the Great Western Company") the following provisions shall unless otherwise agreed between the Council and the Great Western Company have effect (that is to say):—

- (1) Before commencing any works or operations under the powers of this Act affecting any of the railways or affecting any bridges over or under any of the railways or the roadway under or on any such bridge or over any level crossing of the Great Western Railway or over the immediate approaches to any such bridge or level crossing the Council shall submit plans and sections of such works and operations to the Great Western Company for their approval and the said works and operations shall be constructed and carried on in conformity only with such plans and sections and to the reasonable satisfaction of the engineer to the Great Western Company and such works shall thereafter be maintained and repaired by the Council to the reasonable satisfaction of the engineer to the Great Western Company and if and whenever the Council fail so to do the Great Western Company may make and do in and upon as well the lands of the Council as their own lands all such works and operations as they may think reasonably necessary in that behalf and the Council shall repay to the Great Western Company the reasonable expenditure incurred by them and in default thereof the same may be recovered by the Great Western Company from the Council The approval as aforesaid of the Great Western Company shall not be unreasonably withheld and it shall be deemed to have been given unless the Great Western Company signify their disapproval within twenty-eight days after submission of the said plans and sections:

- (2) The Council shall not in the construction alteration maintenance or use of the said works by this Act authorised injure alter or interfere with the railways of the Great Western Company or with the structure of any bridge over or under any of the railways or cause any interruption to or interference with the traffic on any of the railways or at to or from any station thereon : A.D. 1911.
- (3) If any such injury or interruption shall arise from or in any way be owing to any of the works or operations of the Council or the failure of any mains pipes or works in under or near any railway bridge level crossing approach land works or property of the Great Western Company the Council shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed to be determined by arbitration in the manner herein-after provided :
- (4) If having regard to the proposed position of the new works of the Council when considered in relation to the position of the works of the Great Western Company at any point where the wires of the Great Western Company pass over or under the railless routes it is advisable in the reasonable opinion of the Great Western Company that the electric telegraph telephonic or signal wires or apparatus belonging to or maintainable by the Great Western Company shall be altered the Great Western Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Council :
- (5) The protection afforded to the Great Western Company by this section shall not extend to the case of any interference due to induction or leakage with the wires lines and apparatus of the Great Western Company or the currents therein to which section 48 (Special provisions as to use of electrical power) of this Act applies but the Great Western Company shall not by reason of being specially protected as regards other matters under this section lose as regards any such interference any protection to which they are otherwise entitled :

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(6) If the Great Western Company in the exercise of their powers shall at any time hereafter require either to lift widen strengthen reconstruct alter or repair their said railways under or upon which the works in connexion with the Railless Routes Nos. 1 and 2 by this Act authorised are laid and if it shall be necessary for such purposes that the working or user of the trolley cars or any apparatus used in connexion therewith shall be wholly or in part stopped or delayed or any apparatus or equipment be temporarily taken up diverted or removed and if the Great Western Company accordingly give to the Council twenty-eight days' notice in writing (or in the case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up diversion or removal then the working or user of the trolley cars or apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Council and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the apparatus shall be restored with all practicable dispatch but the Great Western Company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal:

(7) The Council shall from time to time pay to the Great Western Company any additional expense which the Great Western Company may reasonably incur in effecting such lifting widening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance of any bridge or other work of the Great Western Company by reason of the existence or user of the said railless routes apparatus or equipment:

(8) Notwithstanding anything contained in the section of this Act the marginal note of which is "Shelters or waiting rooms" the Council shall not without the consent in writing of the Great Western Company under the hand of their secretary or general manager

erect any shelter or waiting room in front of or in close proximity to the stations and premises of the Great Western Company so as to impede or interfere with the traffic to and from the stations and premises of the Great Western Company: A.D. 1911.

- (9) Notwithstanding anything in this Act contained the Council shall not without the previous consent of the Great Western Company first had and obtained as aforesaid run any trolley car over the level crossing at Mill Street save only such empty cars as may be proceeding to or from the car depôt of the Council from and to the Railless Route No. 1 for use on such route:
- (10) If and when the Great Western Company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Council has been placed the Council shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be reasonably required by the engineer of the Great Western Company unless the Council shall have previously adopted some other means of protection to workmen which shall have been reasonably approved by the said engineer:
- (11) The Council shall not for the purposes of this Act erect any post or posts on or make attachments to the structure of any bridge or other property of the Great Western Company without the consent in writing of the engineer of the Great Western Company such posts and attachments if allowed to be in all respects subject to the approval of the said engineer and to be temporarily removed at any time when required by him in connexion with the maintenance and reconstruction or alteration of the said bridges:
- (12) Railless Route No. 2 shall terminate on the western side of the Merthyr Branch Railway of the Great Western Company:
- (13) If any difference shall arise between the Council or their engineer and the Great Western Company or their engineer as to the meaning of this section or as to any plans and sections or as to any work or

A.D. 1911.

method of executing the same or as to any expenses referred to in this section the same shall be determined by an arbitrator to be agreed upon between the Council and the Great Western Company or failing agreement to be nominated by the Board of Trade on the application of any of the parties and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to such arbitration.

For protection of Taff Vale Railway Company.

81. For the protection of the Taff Vale Railway Company (in this section referred to as "the railway company") the following provisions shall unless otherwise agreed upon between the railway company and the Council have effect (that is to say):—

(1) Where the new road and bridge (Bridge Work No. 1) by this Act authorised will cross the Aberdare branch of the railway company at Robertstown the Council shall carry the said road thereover by means of a bridge having a clear span measured between the supports thereof square with the centre line of railway of not less than 68 feet and a clear headway throughout above the rails of 15 feet 9 inches. No portion of any abutment of the bridge shall be upon the property of the railway company but the Council may upon the property of the Company construct a pier or trestle for supporting the said bridge:

(2) In the event of any injury being caused to the bridge carrying Gadlys Road over the Dare Valley Branch Railway of the railway company or the approaches thereto by the construction maintenance repair user or removal of Tramway No. 1 by this Act authorised or any apparatus in connexion therewith the railway company may at the expense in all things of the Council forthwith in cases of emergency and in other cases after giving seven clear days' notice in writing of their intention so to do restore such bridge and approaches or the part or parts thereof which may be so injured to as good a state and condition as they were in before such injury was occasioned:

(3) The provisions of section 32 of the Tramways Act 1870 shall extend and apply to any widening lengthening strengthening reconstruction alteration or repair of the said bridge or the approaches thereto:

- (4) Where the new road and footbridge (Bridge Work No. 2A) by this Act authorised will cross the Cwmbach branch of the railway company the Council shall carry the same thereover by means of a bridge having a clear span measured along the centre line of the said bridge of 60 feet and a clear headway throughout above the rails of the said railway of 17 feet: A.D. 1911.
- (5) If the railway company from time to time owing to subsidence of the ground due to colliery workings or otherwise find it necessary to lift their railways and works then in order to maintain the headways set forth in subsections (1) and (4) of this section the Council shall at their own expense upon receiving notice in writing to that effect from the railway company forthwith proceed to so alter their works and complete such alteration within three months or such longer period as may be agreed upon between the railway company and the Council as to enable the railway company after they have lifted their railway to have the headways above referred to in default of which the Council shall be liable on summary conviction to a penalty of twenty pounds per diem until such alterations shall have been completed:
- (6) The trolley cars used on the railless route (Route No. 2) by this Act authorised shall not be stopped on or otherwise allowed to interfere with or obstruct the traffic of the railway company and the traffic of the railway company shall at all times have precedence of the traffic on the said route which last-mentioned traffic shall be subject to such rules byelaws and regulations relating thereto as may from time to time be approved by the railway company:
- (7) The Council shall not in connexion with the bridge works authorised by this Act enter upon or interfere with the railways of the railway company or any of the lands or works of the railway company until the Council shall have delivered to the railway company plans sections and particulars of such works for the reasonable approval of the engineer of the

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railway company and the Council shall not commence the construction of any such works or enter upon or interfere with any railway or property of the railway company until such plans sections and particulars have been so approved. Provided always that if the engineer of the railway company shall for a period of twenty-eight days neglect or refuse to approve such plans sections or particulars or shall disapprove of the same or in case the engineer of the railway company and the engineer of the Council fail to agree or any difference arises between them then the said works shall be constructed according to plans sections and particulars submitted to and approved by an arbitrator to be appointed as hereafter in this section provided :

- (8) In constructing any works or apparatus upon over or affecting any railway of the railway company the Council shall not except as provided in this section deviate from the lines and levels shown upon the deposited plans and sections without the previous consent in writing of the railway company under their common seal which consent shall not be unreasonably withheld :
- (9) If having regard to the proposed position of the tramways of the Council when considered in relation to the position of the works of the railway company at any point where the wires of the railway company pass over or under the tramways it is advisable that the electric telegraphic telephonic or signal wires or apparatus belonging to or maintainable by the railway company should be altered or strengthened the railway company may execute any works reasonably necessary for such alteration or strengthening and the reasonable expense of executing such works shall be borne by the Council but nothing in this subsection shall extend to any matter to which the section of this Act the marginal note whereof is "Special provisions as to use of electrical power" relates :
- (10) The provisions of sections 28 and 32 of the Tramways Act 1870 shall apply to the overhead equipment constructed under the powers of this Act :

(11) If the Council shall at any time fail to maintain the bridge works by this Act authorised where the same will be upon over or adjoining any lands or affect the undertaking of the railway company in substantial repair and good order and condition to the reasonable satisfaction in all respects of the engineer of the railway company or fail to execute any work or to do any other act or thing which they are by this section required to execute or do the railway company may execute and do in and upon as well the lands of the Council as their own lands all such works and things as they may deem reasonably necessary for any such purpose and the reasonable expenditure incurred by the railway company in so doing as certified by their said engineer shall be repaid to the railway company by the Council: A.D. 1911.

(12) Notwithstanding anything contained in this Act the Council shall from time to time be responsible for and make good to the railway company all losses damages and expenses which may be occasioned to them or any of their railways works or property or to the traffic on any of their railways or to any company or persons using the same or otherwise during or by reason or in consequence of the execution or installation or in consequence or by reason of the failure of any works or apparatus or of any act default or omission of the Council or of their contractors or of any person in the employ of the Council or such contractors or otherwise and the Council shall effectually indemnify and hold harmless the railway company from all claims and demands upon or against them by reason of such execution installation user failure or working or of any such act default or omission and any dispute as to the fact of any such loss damage or expenses or of any compensation to be paid in respect thereof shall be settled by arbitration as hereafter in this section provided:

(13) Notwithstanding anything contained in this Act or shown on the deposited plans the Council shall not (except with the previous consent in writing of the railway company under their common seal) enter upon take or use any land or property of the railway

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company but the Council may purchase so much of the lands numbered 99 on the deposited plans as are needed for the construction of the centre pier or trestle of the Bridge Work No. 1 by this Act authorised and as lie within eighteen inches from the north-eastern boundary of the said lands and the Council may also purchase and the railway company may and shall sell and grant accordingly an easement or right of using so much of the lands of the railway company as may be necessary for the purpose of constructing installing and maintaining the said works and apparatus and the Council shall pay to the railway company for such lands and rights and easements such an amount as may be agreed upon or in the event of difference as may be determined by arbitration under the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement:

(14) Where the Tramway No. 2 by this Act authorised will pass in front of the entrances to the premises of the railway company in Cardiff Road no crossing or passing-place siding junction turnout shelter or waiting room or other work (other than the doubling of the line) shall be made for or in connexion therewith for the distances thereon extending in front of the said entrances to such premises and for a length of 20 yards at each end of such distances without the consent of the railway company and without such consent no carriage used on the said tramway shall be stopped or permitted to be stopped within the points 1 furlong 9.50 chains and 2 furlongs 1.50 chains from the commencement of Tramway No. 2 except only for so long as shall be reasonably necessary for the purpose of discharging and taking up passengers:

(15) In the event of any difference arising between the Council and the railway company respecting any of the matters referred to in this section such difference shall unless otherwise agreed or otherwise provided by this section be referred to an arbitrator to be appointed at the request of either party by the Board of Trade and the provisions of the Arbitration Act 1889 shall apply to every such reference.

PART VI.

A.D. 1911.

LIBRARIES AND RECREATION GROUNDS.

82. The Council may enter upon take and use by compulsion or agreement such of the lands in High Street Aberdare shown on the deposited plans and described in the deposited book of reference as they may require for the purpose of a central library or in connexion therewith and may erect provide and maintain thereon a public library with all necessary halls ante-rooms and conveniences incidental thereto.

Erection
of public
libraries.

83. The Council may enter upon take and use by compulsion or agreement such of the lands shown on the deposited plans and described in the deposited book of reference as they may require for the purpose of recreation grounds and may lay out the same as recreation grounds and may maintain the same as if they had been recreation grounds provided under the Public Health Acts and the provisions of those Acts with respect to recreation grounds (including public walks and pleasure grounds) shall apply to any of the lands referred to in this section when appropriated by the Council as recreation grounds.

Land for
recreation
grounds.

PART VII.

FINANCIAL PROVISIONS.

84.—(1) The Council may from time to time independently of any other borrowing power borrow at interest for the purpose mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods (each of which is in this Act referred to as “the prescribed period”) mentioned in the third column of the said table (namely):—

Power to
borrow.

Purpose.	Amount.	Period for Repayment.
<i>Tramway Purposes.</i>		
(A) For and in connexion with the construction of the tramways by this Act authorised.	22,048 <i>l.</i>	Thirty years from the date or dates of borrowing.
(B) For the provision of electrical equipment.	4,179 <i>l.</i>	Twenty years from the date or dates of borrowing.
(C) For the provision of tramway cars -	7,350 <i>l.</i>	Fifteen years from the date or dates of borrowing.

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Purpose.	Amount.	Period for Repayment.
<i>Trolley Car Purposes.</i>		
(D) For the provision of electrical equipment and the construction of other works necessary for working trolley cars.	7,539 <i>l.</i>	Twenty years from the date or dates of borrowing.
(E) For the provision of trolley cars -	5,880 <i>l.</i>	Ten years from the date or dates of borrowing.
<i>Other Purposes.</i>		
(F) For the purchase of land for the street improvements and bridge works.	The sum requisite.	} Sixty years from the date or dates of borrowing.
(G) For the purchase of land for libraries and recreation grounds.	The sum requisite.	
(H) For the construction of the street improvements and bridge works.	4,856 <i>l.</i>	Fifty years from the date or dates of borrowing.
(I) For the erection of a central library and the laying out of recreation grounds.	10,910 <i>l.</i>	Such period as may be sanctioned by the Local Government Board.
(K) For refuse destructor purposes -	3,000 <i>l.</i>	Thirty years from the date or dates of borrowing.
(L) For paying the costs charges and expenses of this Act as herein-after provided.	The sum requisite.	Five years from the passing of this Act.

(2) The Council may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of Parts II. and III. of this Act and may with the consent of the Local Government Board borrow as may be necessary for any of the purposes of the Act of 1905 or of this Act other than the purposes of those Parts:

Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Board with whose consent it is borrowed.

(3) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Council may mortgage or charge—

As regards money borrowed for purposes (A) (B) (C) (D) and (E) herein-before mentioned the revenue of the tramway undertaking of the Council and the district fund and general district rate or either of those securities:

As regards money borrowed for purposes (F) (G) (H) (I) (K) and (L) the district fund and general district rate:

As regards money borrowed with the consent of the Board of Trade or the Local Government Board such fund rate or revenue as those Boards may prescribe.

85. For the better and more effectually carrying into execution the powers and duties of the Council under the Public Libraries Acts 1892 to 1901 those Acts shall be read and have effect as if the limit thereby imposed on the amount authorised to be levied by or added to a rate were extended so as not to exceed the sum of twopence in the pound and at least six-elevenths of such rate shall be applied towards the expenses of the central library.

A.D. 1911.
 Limit of
 library rate
 extended.

86. The following provisions of the Act of 1905 shall extend and apply to and for the purposes of this Act as if those provisions were with all necessary modifications re-enacted in this Act Provided that in the application of such provisions the same shall be read and have effect as if trolley vehicles were carriages used on the Council's tramways:—

Application
 of provisions
 of Act of
 1905.

The whole of the provisions of Part V. (Lands) of the said Act except section 20 (Period for compulsory purchase of lands) section 22 (Correction of errors &c. in deposited plans and book of reference) section 23 (Owners may be required to sell parts only of certain lands and buildings):

Section 30 (Certain regulations of Public Health Act as to borrowing not to apply):

Section 31 (Provisions as to mortgages):

Section 32 (Protection of lenders from inquiry):

Section 34 (Mode of payment off of money borrowed):

Section 35 (Sinking fund):

Section 36 (Return respecting sinking fund to Local Government Board):

Section 38 (Power to borrow under Local Loans Act 1875):

Section 39 (Application of money borrowed):

Section 40 (Council not to regard trusts).

87.—(1) The Council shall have power—

(A) to borrow for the purpose of paying off any moneys previously borrowed by them under any statutory borrowing power which are intended to be forthwith repaid; or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed by them under

Power to re-
 borrow.

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any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Consents not
to be un-
reasonably
withheld.

88. Where the consent or approval of any local or road authority or company body or person is by this Act required before the exercise of any powers by the Council such consent or approval shall not be unreasonably withheld and if any difference arises as to whether any consent or approval is unreasonably withheld that difference shall unless otherwise specially provided be referred to arbitration.

Inquiries
by Local
Government
Board.

89.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as inspectors of the Local Government Board have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Council shall pay to the Local Government Board any expenses incurred by such Board in relation to any inquiries referred to in this section including the expenses of

any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by such Board not exceeding three guineas a day for the services of such inspector. A.D. 1911.

90. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts. Audit of accounts.

91. All expenses incurred by the Council in carrying into execution the provisions of this Act (except expenses under Part V. of this Act and such other expenses as may be payable out of borrowed moneys or paid out of tramway revenue in pursuance of the provisions of this Act) shall be paid out of the district fund and general district rate. Expenses of executing Act.

92. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

93. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with complying with the requirements of the Borough Funds Acts 1872 and 1903 shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the district fund and general district rate but ultimately if the Council so determine out of money borrowed under this Act. Expenses of Act.

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A.D. 1911. The SCHEDULE referred to in the foregoing Act.

PREMISES OF WHICH PORTIONS ONLY MAY BE TAKEN.

District or Parish.	Numbers on deposited Plans.
Parish and urban district of Aberdare.	13 to 31 33 to 37A 38 to 59 62 to 68 87 to 89 93 to 129 131A to 135.

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